

ORIGINAL

FEDERAL MARITIME COMMISSION

ADEBISI A. ADENARIWO

Claimant,

v.

BDP INTERNATIONAL, ZIM
INTEGRATED SHIPPING, LTD. AND ITS
AGENT (LANSAL) ET AL.

Respondents.

Informal Docket
No. 1921(I)

Served: August 5, 2016

BY THE COMMISSION: Mario CORDERO, *Chairman*,
Rebecca F. DYE, Michael A. KHOURI, William P. DOYLE, and
Daniel B. MAFFEI *Commissioners*.

Order Granting Motion for Extension of Time

I. Background

On February 20, 2014, the Federal Maritime Commission (FMC or Commission) issued an order affirming the Settlement Officer's (SO) determination that Zim Integrated Shipping, Ltd., (Zim or Respondent) violated 46 U.S.C. § 41102(c) (section

10(d)(1)) of the Shipping Act of 1984 (Shipping Act or Act)). 33 S.R.R. 223 (FMC 2014). The Commission also affirmed the award of \$18,308.94, plus interest, in reparations based on the finding that Mr. Adenariwo (Claimant) could have mitigated his damages by paying the charges invoiced by Zim and obtaining the release of his container, thereby avoiding the selloff of its contents. *Id.* at 224.

On March 21, 2014, Claimant filed a petition for review of the Commission's decision with the U.S. Court of Appeals for the District of Columbia Circuit (Court). On December 15, 2015, the Court ordered that the Commission's decision to require mitigation of damages be vacated and the case remanded for further proceedings, specifically "the entry of an award by the Commission in favor of petitioner in the full amount of his unmitigated damages." *Adenariwo v. FMC*, 808 F.3d 74, 81 (D.C. Cir. 2015).

On April 28, 2016, the Commission issued an Order to File Supplemental Briefs. On June 14, 2016, Zim filed a supplemental brief. Claimant made no submission. In light of the uncertainty surrounding Claimant having representation before the Commission and the Claimant's propensity to respond when requested by the Commission in the past, the Commission issued an additional Order to File Supplemental Briefs on July 27, 2016.

On August 1, 2016, the Commission received correspondence from Claimant which included a Motion for Extension of Time and a series of general inquiries (Motion). The Motion and general inquiries will be addressed here.

II. Discussion

In the August 1, 2016 correspondence, Claimant asserts that an extension of the briefing deadline is required because he did not receive the original April 28, 2016 Order and needs additional time to secure representation. Claimant requests that the deadline be

extended until August 31, 2016.

Given the Claimant does not currently have representation before the Commission and given the Claimant's assertion that he did not receive the April 28, 2016 Order, the Commission grants the Claimant's request for additional time until August 31, 2016. Respondent's response brief, if needed, must be filed no later than September 7, 2016.

Additionally, Claimant inquired of the Commission if "the cost of hiring an Attorney for this brief, will be considered in determining my damages." *See* Motion. Under 46 U.S.C. § 41305 and 46 C.F.R. § 502.254, reasonable attorney fees may be available to the prevailing party after this proceeding has been deemed final. 46 C.F.R. § 502.254(c)(2).

Claimant also discussed future efforts to assess his damages. Claimant is reminded that, as outlined in the July 27, 2016 Order, his supplemental brief should be supported by evidence already in the record. No additional evidence will be admitted to the record absent a demonstration of compelling circumstances. Further, Claimant is reminded that as this is an informal small claim under Subpart S of the Commission's Rules and Regulations, reparations are limited to \$50,000 or less. *See Adenariwo*, 808 F.3d at 76 ("While Adenariwo alleges that he suffered a loss of \$240,606 per container, he chose to pursue his claims through the informal adjudication process, which is limited to claims of \$50,000 or less." (citing 46 C.F.R. § 502.301(b))).

Finally, Claimant comments on the possible need for further extension of the briefing deadline. The Commission will consider any further motions for extension and the basis for extension at the time those written motions are filed.

III. Order

THEREFORE, IT IS ORDERED, that, Claimant, Adebisi A. Adenariwo's Motion for Extension of Time is GRANTED;

FURTHER, IT IS ORDERED, that, Claimant may file a supplemental brief on the appropriate reparation award amount, as outlined in the July 27, 2016 Order, no later than August 31, 2016; and

FINALLY, IT IS ORDERED, that Respondent, Zim Integrated Shipping Ltd., has the option to file a response, if needed, no later than September 7, 2016.

By the Commission.

Karen V. Gregory
Secretary